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INOX AIR PRODUCTS

Purchase Order

Regd. Office
Ceejay House, 7th Floor,
Dr. Annie Besant Road,
Worli,Mumbai-400 018.
Tel.:(022)- 4032 3960/3195
Fax: (022)- 4032 3191/3991
CIN:U24999MH1963PTC012625
PAN:AAACI5569D
Email:info@inoxap.com
www.inoxairproducts.com

Factory
Inox Air Products Pvt Ltd
DHOLKA
Block no.768
Village Simej,
Ahmedabad-387810
GSTIN No : 24AAACI5569D1ZQ

Consignee Address
Inox Air Products Pvt Ltd

Ahmedabad 387810

To,
NIHVA Technologies Pvt.Ltd.
187,G-Block,Thermax chowk,
MIDC Chinchwad,
Pune 411019
Ph. No. 2066304033
PAN: AAECN0437H
GSTIN No. 27AAECN0437H1ZM

Our Reference	:	
Your Reference	:	
Quotation No.	:	
Quotation Date	:	
P.O. No.	:	4500180568
P.O. Dated	:	06.11.2018
Vendor Code	:	100007179

Subject : Kind Attn: Mr. Vijay Tarak,
(Tel: 8551093333)
Dear Sir,
1.With reference to: Your offer No. SQT/18-19/0384R4 Dtd. 27.09.2018, Email dt.30.10.2018; 27.09.2018; 25.09.2018; 23.08.2018 we are pleased to release the purchase order for the Materials/ services as per scope of supply.
2.Note: In case of any contradictions between this Purchase Order contents and other reference documents/ discussions, if any, the P urchase Order contents shall take precedence.
3.The Expeditor for this Purchase Order is: Mr. Piyush-Ph 020-40173687
4.INVOICING INSTRUCTIONS:
a.In case Purchase Order contains multiple line item nos., SUPPLIER shall mention Purchase Order line item no. against respective invoice items.
b.SUPLIER shall follow instructions as per annexed Invoice Rules under Rule 7 of GST and pay special attention to clause 3 (Manner of Issuing Invoice) or clause 4 (Bill of Supply) as applicable. Accordingly, invoice shall contain following details as a minimum: (a)name, address and GSTIN of the supplier (b)a consecutive serial number (c)date of its issue (d)name, address and GSTIN of the recipient (e)description of goods or services with HSN code or Accounting Code (f)quantity in case of goods and unit (g)total value of supply of goods or services or both (h)taxable value of supply of goods or services or both (i)rate of tax (j)amount of tax charged (k)place of supply along with the name of State (l)address of delivery where the same is different from the place of supply (m)whether the tax is payable on reverse charge basis (n)signature or digital signature of the supplier.
c.The invoice shall be prepared in TRIPLICATE, in case of supply of goods, in the following manner: (i)the original copy being marked as ORIGINAL FOR RECIPIENT (ii)the duplicate copy being marked as DUPLICATE FOR TRANSPORTER (iii)the triplicate copy being marked as TRIPLICATE FOR SUPPLIER.
d.The invoice shall be prepared in DUPLICATE, in case of supply of services, in the following manner: (i)the original copy being marked as ORIGINAL FOR RECIPIENT (ii)the duplicate copy being marked as DUPLICATE FOR SUPPLIER.
e.As per Revised Rule 114B of Income Tax Act, quoting of PAN is mandatory on Invoice for sale or purchase transaction in excess of Rs. 2

Lakhs.
f.Failure to comply with above invoicing requirements shall lead to return of the invoice for correction. BUYER shall not be liable for the delays in payment release in such case.
g.The serial number of invoices issued during a tax period shall be furnished electronically through the Common Portal in FORM GSTR-1.

Sr No.	Material Code / Particulars	Quantity	Unit	Basic Rate Rs/unit	Amount (Rs.)
10	Installation of MS Gate 12.5mL*1.8mH **Additional Specification:=>** (1)Motorised Gate suitable for clear opening of 12.5m long x 1.8m ht with IP55 Motor+ IP55 control panel and accessories. Motor: BFT-ICARO N PROX Scope of supply as per datasheet attached. ISMB100*50 with dia 20 mm round bright bar included in scope. (2)Lodging, boarding, travel, Scaffolding, tools, hydra for site work included in scope. (3)Construction power supply at nearest inlet point in BUYER's scope.				
1	Installation of MS Gate 12.5mL*1.8mH HSN/SAC :	1.000	AU	17,500.00	17,500.00
Total					17,500.00
			Taxable Amount		17,500.00

RUPEES SEVENTEEN THOUSAND FIVE HUNDRED ONLY

1.TAXES AND DUTIES :
a.Goods and Services Tax (GST): shall be extra at actual at the time of delivery.
b.Income Tax: Income Tax shall be deducted at source as applicable on the payments as per IT norms.
c.The SERVICE SUPPLIER is required to undertake all the compliances specified under the GST laws and rules framed thereunder. In case of any loss to BUYER including loss of credits on account of non-compliance by the SERVICE SUPPLIER, the SERVICE SUPPLIER shall make good the financial loss arising to BUYER including loss on account of denial of credits.
The financial loss to be compensated to BUYER shall also include payment by BUYER of duty, interest, penalty, fine and litigation cost, applicable if any.
2.PAYMENT TERMS:
a.100% of order basic value along with full taxes and duties, on pro-rata basis, after completion of work duly certified by BUYER's site engineer in-charge
b.Payment processing time: 30 days
3.EFFECTIVE DATE OF Purchase Order :
Date of PO or readiness of work front at site, whichever is later.
4.CONTRACTUAL DELIVERY PERIOD/ WORK COMPLETION PERIOD :
1 week
5.LIQUIDATED DAMAGES:
SERVICE SUPPLIER on failing to complete the work on or before Contractual Work Completion Date, for reasons attributable to the SERV ICE SUPPLIER, shall be liable to pay liquidated damages at the rate of 0.5% per week of delay subject to a maximum of 5% of the basic Contract value.
6.WARRANTY :
Warranty coverage from SUPPLIER for workmanship shall apply for a period of 18 months from date of final site acceptance/ work completion certificate.
7.PRICE BASIS :
a.All Unit Rates and Lump sum Prices, shall remain Firm and fixed for the duration of the contract.

b.The rates are inclusive of cost of accommodation, food and conveyance and hire charges of all machinery if any, all incidental charges, etc. complete.
c.Electrical power, water if required shall be arranged by BUYER at cost cost.
d.Civil work, if required, shall be arranged by BUYER at cost cost.
e.For any additional/ non-tender item, prices shall be discussed/mutually settled.
f.No claim shall be entertained whatsoever, except those which are explicitly as per provisions of this contract.

8.STATUTORY COMPLIANCES:

a.SERVICE SUPPLIER shall confirm in all respects with the provisions of all statutory rules and regulations, ordinance, bye laws of any local or duly constituted authorities or public bodies which may be applicable from time to time to the Purchase Order as per Central and State rules and regulations .
b.SERVICE SUPPLIER shall keep BUYER indemnified against all penalties and liabilities of every kind, arising out of non adherence to such statutory rules, laws, ordinances, regulations etc.

9.SAFETY:

a.SERVICE SUPPLIER shall follow and comply with all Safety Rules of BUYER, relevant provisions of applicable laws pertaining to the safety of workmen, employees, plant and equipment as may be prescribed from time to time without any demur, protest or contest or reservation.
b.In case of any conflict between statutory requirement and Safety Rules of the BUYER referred above, the later shall be binding on SERVICE SUPPLIER
c.Any loss or damage to BUYER or third party property due to negligence of the crew employed is attributable to SERVICE SUPPLIER. BUYER shall not be responsible for any accident/injury to the SERVICE SUPPLIER Crew/staff during operation or otherwise.
d.SERVICE SUPPLIER has to assume full responsibility of the safety of their crew/staff and to comply with the security/safety regulations of BUYER and others at site.
e.Any local issues around site related to workforce shall be taken care by SERVICE SUPPLIER.

10.RISK PURCHASE :

a.Timely completion of Purchase Order is essence of this Purchase Order. If BUYER terminates the order in whole or in part due to SERVICE SUPPLIER's inability to deliver/ perform in accordance of the Purchase Order Terms, specifications and Quality requirements, the BUYER shall be entitled to get the work completed which was to be completed under the terminated portion of the Purchase Order from any other source.
b.SERVICE SUPPLIER shall be liable for all costs incurred by BUYER in getting the work completed which are in excess of what would have cost to BUYER if such work had been completed under Purchase Order.

11.COMPLETENESS :

a.All work shall be completed in all respect as per Technical Specifications of BUYER's Inquiry, subsequent discussions and agreem ents over telephone, Email Correspondences., etc. , and in the event any item is not considered / discussed but required for completeness of the Purchase Order.
b.SERVICE SUPPLIER shall ensure to fulfill the requirements without any cost implication and shall be in line with the Inquiry specification data sheet, relevant standards, other related documents forwarded along with the Inquiry and other information/requirements.
c.The several documents forming the Purchase Order are to be taken as mutually explanatory of one another and in case of ambiguities or discrepancies, the same shall be explained and adjusted by the BUYER who shall thereupon issue to the SERVICE SUPPLIER's instructions directing in what manner the work is to be carried out.
d.The SERVICE SUPPLIER shall give adequate notice to the BUYER of any of further drawings or specification that he may require for the execution of the work under the Purchase Order.

12.FORCE MAJEURE :

a.Shall the work completion be delayed due to any cause which is beyond SERVICE SUPPLIER's or BUYER's control, as the case may be, and which could not be foreseen or with a reasonable amount of diligence could not have been foreseen and which substantially affects the execution of the order, such as floods, drought, earth quakes, epidemics, acts of Govt., War, Strikes, lock outs, fire, accidents, etc. and shall satisfy us in this respect,

b.The party so affected by an event of Force Majeure shall notify the other party of the occurrence thereof within fifteen (15) days of its commencement, specifying the matter constituting Force Majeure and with evidence of its adverse effect on performance of Purchase Order/ WORK ORDER.

c.Based on above, a reasonable extension of time for work completion may be granted by BUYER without enhancement of the agreed prices of the Purchase Order.

d.The Force Majeure referred to above shall not be extended to cover SUB-SERVICE SUPPLIER's work.

13.BANKRUPTCY AND INSOLVENCY:

If the SERVICE SUPPLIER shall become bankrupt or insolvent; have a receiving order made against it; compound with its creditors; being a corporation commence a winding up, dissolution, or similar proceeding (such proceeding not being voluntary for the purpose of reconstruction or amalgamation while solvent); or carry on its business under an administrative receiver for the benefit of its creditors or any of them; have an administrator appointed; have any distress levied on BUYER's work, then in any such event BUYER shall have the right to terminate the Purchase Order forthwith by notice in writing to SERVICE SUPPLIER or the administrative receiver, liquidator, administrator or to any person in whom the Purchase Order may become vested, or give such administrative receiver, liquidator, administrator or other person the option of carrying out the Purchase Order subject to providing a guarantee for the due and faithful performance of the Purchase Order up to an amount to be agreed. References to any of the above events shall, in respect of any jurisdiction in which the SERVICE SUPPLIER is located, shall be deemed to include the legal concept which most nearly approximates it in that jurisdiction.

14.RELATIONSHIP :

Nothing in this agreement shall be deemed to give rise to agency, employment, partnership etc. and the SERVICE SUPPLIER shall not be deemed to the agent, employee of partner of the BUYER.

15.REPRESENTATIONS AND WARRANTIES :

a.The SERVICE SUPPLIER represents and warrants to the BUYER that:

b.The SERVICE SUPPLIER has full power and authority to grant the Concession;

c.The SERVICE SUPPLIER has taken all necessary action to authorise the execution, delivery and performance of this Agreement

d.This Agreement constitutes SERVICE SUPPLIER's legal, valid and binding obligation enforceable against it in accordance with the terms hereof.

e.Any terms or conditions quoted by SERVICE SUPPLIER previously which are inconsistent with the above terms or vary from them or any of them will not form the terms and conditions of the Purchase Order and it is specifically agreed that the above terms will supersede all the terms which are inconsistent with the above.

16.ASSIGNMENT:

The SERVICE SUPPLIER shall not assign the Purchase Order or any part thereof or any benefit or interest therein or there under without the prior written consent of the BUYER.

17.SUB-LETTING:

The SERVICE SUPPLIER shall not sub-let the whole of the works. Except where otherwise provided by the Purchase Order, the SERVICE SUPPLIER

shall not sub-let any part of the works without the prior written consent of the BUYER but such consent if given, shall not relieve the SERVICE SUPPLIER from any liability or obligation under the Purchase Order and he shall be responsible for the acts, defaults and negligence of any sub-SERVICE SUPPLIERs, his agents, servants or workmen as fully as if they were the acts, defaults and negligence of the SERVICE SUPPLIER, his agents, servants or workmen.

18.CONFIDENTIALITY:

a.Each of the parties hereto shall hold in confidence this Purchase Order and all documents and other technical and commercial data or information supplied to it by or on behalf of the other party relating directly or indirectly to this Purchase Order ("Confidential Information").

b.Neither party shall disclose such Confidential Information to any third party without the written consent of the disclosing party, provided that each party shall be permitted to disclose the Confidential Information to its employees, affiliates, agents, associates, representatives and consultants on the "Need to Know" basis.

19.ENIRITY:

This Purchase Order constitutes the final and the entire Agreement between the parties hereto with respect of any and all subject matters covered herein and shall supersede all previous representation, understanding and Agreement between the parties relating thereto.

20.GOVERNING LAW / DISPUTE RESOLUTION

a.The Purchase Order shall be construed and interpreted in accordance with the laws applicable in India.

b.Any and all dispute, controversies or claims arising out of or in connection with this Purchase Order which can not be resolved with negotiation shall be submitted first to voluntary mediation, and if the mediation is not successful then to an arbitration tribunal consisting of three arbitrators, one to be appointed by the BUYER, one by the SERVICE SUPPLIER and the third to be appointed by the two appointed arbitrators. The arbitration proceedings shall be conducted under and in accordance with the Arbitration and Conciliation Act, 1996. The venue of arbitration shall be Mumbai. The judgment on any arbitration award may be entered in any court having jurisdiction.

c.If either party fails or refuses to agree or participate in the above process or if in any event the dispute or difference is not resolved to the satisfaction of both parties within 90 days after it has arisen, then either party shall have the right to initiate legal proceedings against the other but only in a court located in Mumbai, it being the intent of the parties that such court shall have the exclusive jurisdiction over any legal proceedings initiated by either party against the other in connection with the Purchase Order.

21.JURISDICTION OF COURT:

The Court of Mumbai shall have exclusive jurisdiction in all matters related to this Purchase Order.

22.LANGUAGE OF THE Purchase Order :

All communications in connection with this Purchase Order shall be in the English language.

23.PO ACCEPTANCE :

SERVICE SUPPLIER shall return copy of Purchase Order, duly signed and stamped with acceptance remarks within 2 working days from the receipt of the Purchase Order, as Purchase Order Acceptance.

Dispatch : Simej 200TPD	
Payment:	

The confirmation of the order shall constitute the contract and shall be given in writing within two days on receipt of order failing which confirmation will be deemed to have been given. The buyer shall not be responsible for payment of any goods unless an official order and proof of delivery covering the same are produced satisfactory by the supplier. Please ensure the transporter not to pay octroi as our factory is situated outside octroi area.

For INOX AIR PRODUCTS PVT.LTD.

Procurement Dept | Accounts Dept | Project Head

Terms & Conditions

The Supplier is required to undertake all the compliances specified under the GST laws and rules framed thereunder. In case of any loss to INOXAP including loss of credits on account of non-compliance by the supplier, the supplier shall make good the financial loss arising to INOXAP including loss on account of denial of credits. The financial loss to be compensated to INOXAP will also include payment by INOXAP of duty, interest, penalty, fine and litigation cost, applicable if any.

The supplier will be responsible to comply with the provisions of Anti-Profiteering Rules in terms of which the supplier is mandated to pass on the benefits if any accrued to the supplier due to the introduction of GST, by way of reduction is purchase price of the goods.

NOTE:Please mention our PAN number AAACI5569D in your sales invoice mandatorily.